

(3) The Parties file with the court a joint declaration stating the means by which the parties met and conferred and identifying the specific objections in the motion and supporting memorandum of points and authorities that the parties were unable to resolve.

The court will not accept further briefing.

4.

| CASE #      | CASE NAME           | HEARING NAME                                                                                                                                                                                                         |
|-------------|---------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CVPS2501702 | CARRERA VS GONZALEZ | MOTION TO COMPEL REQUEST FOR ADMISSIONS FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT TO PLAINTIFF'S REQUEST FOR ADMISSION, SET ONE, NO. 47 AND FOR SANCTIONS IN THE AMOUNT OF \$897.50 BY CARISSA CARRERA |

**Tentative Ruling:** No tentative ruling. Motion to Compel is continued for parties to properly meet and confer as directed above.

5.

| CASE #      | CASE NAME           | HEARING NAME                                                                                                                                                                     |
|-------------|---------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CVPS2501702 | CARRERA VS GONZALEZ | MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT, SET ONE, AND FOR SANCTIONS BY CARISSA CARRERA |

**Tentative Ruling:** No tentative ruling. Motion to Compel is continued for parties to properly meet and confer as directed above.

6.

| CASE #      | CASE NAME           | HEARING NAME                                                                                      |
|-------------|---------------------|---------------------------------------------------------------------------------------------------|
| CVPS2501702 | CARRERA VS GONZALEZ | MOTION TO COMPEL ENRIQUE TIRA TO PRODUCE DOCUMENTS, AND FOR SANCTIONS IN THE AMOUNT OF \$3,429.75 |

**Tentative Ruling:** Discovery may be obtained from a nonparty by oral deposition, written deposition, or a deposition for production of business records. (CCP §2020.010.) “[T]he process by which a nonparty is required to provide discovery is a deposition subpoena.”

(CCP §2020.010(b).) Personal service of a deposition subpoena obligates any California resident to appear, testify and produce the requested documents, and to appear in any proceedings to enforce the discovery. (CCP §2020.220(c).)

Where a deponent fails to answer a deposition question, the examining party may move for an order compelling an answer. (CCP § 2025.480(a).) The motion must be accompanied by a declaration showing a good faith attempt to resolve the dispute informally. (CCP § 2025.480(b).) The deponent has the burden to justify refusal to respond. (*Warford v. Medeiros* (1984) 160 Cal.App.3d 1035, 1045.)

On January 16, 2026, the Subpoena for Personal Appearance and Production of Documents and Things (Subpoena) was issued for Tira. (Decl. of Harings, Ex. 1.) The Subpoena included four RFPs. RFP No. 4 requests, “All of your correspondence, documents, letters, notes, videos, audio recordings, emails, or text messages which include any reference to Carissa Carrera, her son and/or your retention or actions in investigating Ms. Carrera and/or her son, from January 1, 2023 to the present.” (Decl. of Harings, Ex. 1.) Plaintiff argues that, during the deposition, it became clear that all responsive documents were not provided. Tira does not dispute that he failed to produce all documents in advance of the deposition. Nor does he dispute the relevance of the documents at issue.

Tira claims that he has since produced additional documents to the District’s counsel with the request that they be forwarded to Plaintiff’s counsel. However, the documents were not produced in native form. Moreover, Tira appears to concede that he has not completed a diligent search for the documents.

Regarding sanctions, the court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion under CCP § 2025.480 unless the party subject to the sanction acted with substantial justification or other circumstances make the imposition unjust. (CCP § 2025.480(j).) While it is apparent that Tira did not produce all responsive documents prior to the deposition or meet and confer prior to the filing of the Motion, the circumstances make the imposition of sanctions unjust. On May 29, during the post-Motion meet and confer, Tira informed counsel that he had been out of town and was suffering from medical issues, which required him to be fitted for a heart monitor. (Decl. of Tira, ¶¶8.) It appears that Tira has been making some effort to locate and provide responsive documents. (Id at ¶¶9.) Tira has also agreed to continue to use best efforts to search for documents. (Id at ¶¶ 11.)

Motion to Compel 3<sup>rd</sup> Party Enrique Tira to Produce Documents GRANTED.

Enrique Tira is ordered to produce all responsive documents and verified responses, to Plaintiff’s Request for Documents #4, without objection. Documents submitted by Enrique Tira shall be in their native form.

Enrique Tira is ordered to sit for a continued deposition, if directed by Plaintiff. The deposition will occur on an agreed upon date, no later than 60 days after production of the additional documents and responses.

Request for Sanctions DENIED.